

DISCIPLINARY ACTION FORM

This is a customizable starting template, not a finished legal document. Replace every [BRACKETED] field with your specifics, delete or adapt any clause that does not fit your situation, and have a licensed attorney in the governing jurisdiction review it before you or anyone else signs. CyberSygn is not a law firm and this template is not legal advice.

This Disciplinary Action Form (this "Form") is issued by [COMPANY LEGAL NAME] (the "Company") on [DATE OF ACTION] to document corrective action concerning [EMPLOYEE NAME] (the "Employee"), who holds the position of [JOB TITLE] in the [DEPARTMENT] and reports to [MANAGER NAME] (the "Manager").

Recitals. The Company maintains standards of performance and conduct set out in its policies and handbook. The Company is issuing this Form to document a specific incident or pattern of behavior, the corrective action being taken, and the expectations going forward. This Form is intended to create a clear, fair, and contemporaneous record. It does not alter the at-will nature of the Employee's employment, where applicable. The Company records the following.

1. Incident Details

1.1 Date and location. The incident or conduct at issue occurred on [DATE(S)] at [LOCATION], and was observed or reported by [NAME / SOURCE].

1.2 Description. The conduct or performance issue being documented is: [Describe factually and specifically what happened or what standard was not met, without characterization or assumptions about intent.]

1.3 Policy or standard implicated. The conduct relates to the following policy, rule, or standard: [Reference the specific handbook section, policy, or expectation, or describe the standard if not written.]

2. Category and Level of Action

2.1 Category of issue. This action concerns (check all that apply): ☐ Attendance / punctuality ☐ Quality or quantity of work ☐ Policy violation ☐ Safety ☐ Conduct / behavior ☐ Insubordination ☐ Other: _____]

2.2 Level of disciplinary action. The level of action being taken is: ☐ Verbal warning (documented) ☐ Written warning ☐ Final written warning ☐ Suspension (with / without pay) ☐ Performance improvement plan ☐ Termination of employment ☐ Other: _____]

2.3 Suspension details (if applicable). If a suspension is imposed, it runs from [START DATE] through [END DATE] and is [paid / unpaid] to the extent permitted by applicable law.

3. Prior Notices and History

3.1 Prior related actions. The following prior warnings or actions relate to this or similar conduct: [List prior verbal or written warnings, coaching, or prior forms with dates, or state "none, this is the first documented action."]

3.2 Progressive discipline. Where the Company uses progressive discipline, this action reflects the next appropriate step in light of the history above. The Company reserves the right to skip steps where the

seriousness of the conduct warrants, consistent with policy and applicable law.

4. Expectations and Corrective Action

4.1 Required change. Going forward, the Employee is expected to: **[State the specific corrective behavior or standard the Employee must meet, in clear and measurable terms.]**

4.2 Support provided. The Company will provide the following support, where applicable: **[List any retraining, coaching, resources, or follow-up that will be provided.]**

4.3 Timeline and follow-up. The Employee's adherence to these expectations will be reviewed on **[FOLLOW-UP DATE]**. The Manager will meet with the Employee to discuss progress.

4.4 Consequences of further issues. The Employee is advised that failure to meet these expectations, or further violations, may result in additional disciplinary action up to and including termination of employment, consistent with applicable law and Company policy.

5. Employee Statement

5.1 Opportunity to respond. The Employee has been given the opportunity to respond to this action. The Employee's statement, if any, is recorded below or attached: **[Record the Employee's comments here, or note that a written statement is attached.]**

5.2 Right to add comments. The Employee may submit a written response within **[NUMBER]** days, which will be added to the Employee's personnel record.

6. Acknowledgment

6.1 Acknowledgment of receipt. By signing below, the Employee acknowledges receiving and discussing this Form. The Employee's signature confirms receipt; it does not necessarily indicate agreement with the contents.

6.2 Refusal to sign. If the Employee declines to sign, the Manager will note the refusal and the date, and a witness may sign to confirm the Form was presented and reviewed with the Employee. Refusal to sign does not invalidate the action.

6.3 Confidentiality. This Form is a confidential personnel record and will be maintained in accordance with Company policy and applicable law.

7. Recordkeeping

7.1 Retention. This Form will be retained in the Employee's personnel file for the period required by Company policy and applicable law.

7.2 Distribution. Copies will be provided to the Employee and to Human Resources, and to the Manager as appropriate. No other distribution will be made except on a need-to-know basis or as required by law.

ACKNOWLEDGMENT OF RECEIPT.

EMPLOYEE

MANAGER

Signature: _____

Signature: _____

Printed name: **[EMPLOYEE NAME]**

Printed name: **[MANAGER NAME]**

Title: **[JOB TITLE]**

Title: **[MANAGER TITLE]**

Date: _____

Date: _____

WITNESS / HR (if applicable)

Signature: _____

Printed name: **[NAME]**

Title: **[TITLE]** (or N/A)

Date: _____

Employee declined to sign: ☐ Yes ☐ No, Date: _____

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